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COLLECTION · QUÉBEC & LEGAL

The Notary's Role

What the notary does in a Quebec real estate transaction

2026 EDITION

READ BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It offers general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. As every real estate situation is different, it is recommended that you consult the appropriate professionals before making any decision regarding a real estate transaction.

The Notary's Role · Collection Québec & Legal · Guide No. 36 · 2026 Edition

The Notary’s Role

What the notary does in a Quebec real estate transaction

In Quebec, no property sale closes without a notary. This legal professional secures the transaction, protects the parties and makes the sale official. Knowing them means approaching the signing with peace of mind.

This guide explains the notary's role, how the signing unfolds, and the fees associated with it.

Informational content. Each chapter ends with a lined “My notes” page.

In Quebec, no property sale closes without a notary. This legal professional secures the transaction, protects the parties and makes the sale official. This guide explains their role, what they check, how the signing unfolds and the associated fees.

Knowing them means approaching the signing with peace of mind.

CHAPTER

An impartial public officer

> *Understanding their particular position.*

The notary is a **public officer**: they act impartially to give the deed of sale its official force. They verify, draft, authenticate and keep the deeds.

Their role is to secure the transaction for *all* parties, not to defend just one. In a purchase, it's usually the buyer who chooses the notary — often because it's the buyer (or their lender) who covers the fees.

- Impartiality: they don't take sides.
- Authentic force: the deed they receive constitutes proof.
- Custody: they keep the original (the minute).

The notary isn't “your lawyer”: they act impartially to give the sale its official force and secure all parties. In a purchase, it's usually the buyer who chooses them, often because the buyer covers the fees.

> EMILIE'S TIP
>
> *The notary isn't “your lawyer”. They protect the validity of the sale for everyone. If an issue puts you at odds with the seller, you need an advisor of your own, not the notary.*

CHAPTER

What the notary checks and prepares

> *Knowing the work behind the signing.*

Most of the notary's work is done **before** signing day:

- **Title examination**: confirming that the seller is indeed the owner, with no hidden charge (mortgage, seizure).
- Analysis of the **location certificate** and the easements.
- Drafting of the **deed of sale** and the mortgage deed.
- Receiving and redistributing the **funds** (repaying the old mortgage, paying the seller).
- **Publication** of the sale in the Land Register.

It's this meticulous work that spares you nasty surprises after the purchase.

Most of their work is done before signing: title examination (is the seller indeed the owner, with no hidden charge?), analysis of the location certificate and the easements, drafting the deeds, then receiving and redistributing the funds. This meticulous work spares you nasty surprises after the purchase.

> EMILIE'S TIP
>
> *Provide your documents to the notary as early as possible. A complete file, sent in time, means a stress-free signing and sometimes a few days gained.*

CHAPTER

The signing and the fees

> *Knowing what to expect on the big day.*

On signing day, the notary explains the deed to you, answers your questions, gathers the signatures and processes the payments. It's also when you receive the keys (according to the agreed possession date).

On the budget side, plan for these in your closing costs:

- The notary's **fees**.
- The **disbursements**: publication fees, copies, searches.

A useful reminder: the **Welcome Tax** isn't paid at the notary's — it's the subject of a municipal bill sent a few weeks or months later.

On the big day, the notary explains the deed, gathers the signatures and processes the payments. Plan for their fees and the disbursements (publication, copies) in your closing costs. Reminder: the Welcome Tax isn't paid at the notary's, but by municipal bill later.

> EMILIE'S TIP
>
> *Ask the notary for a written estimate of the fees from the start. You'll avoid the "how much do I need to bring" surprise the day before signing.*

CHAPTER

Choosing and preparing your notary well

> *Approaching the signing with peace of mind.*

The choice of notary is often left to the buyer. A few markers to decide well:

- A **recommendation** from your broker or your lender is a good starting point.
- Check their **availability** relative to your closing date.
- Make sure they **answer your questions** clearly.

Prepare on your side: valid ID, banking details, proof of home insurance in force for the possession date. A ready file speeds everything up.

Contact the notary as soon as the promise is accepted, not the day before: good notaries are busy and a signing has to be planned. Prepare your ID, banking details and proof of insurance in force — a complete file speeds everything up.

> EMILIE'S TIP
>
> *Contact the notary as soon as the promise to purchase is accepted, not the week before. Good notaries are busy, and a signing is planned several weeks ahead.*

CHAPTER

After the signing: what's left

> *Understanding the aftermath of the sale.*

The signing isn't quite the end. The notary still completes a few steps:

- **Official publication** of the sale and the mortgage in the Land Register.
- **Discharge** of the seller's old mortgage.
- Sending the **copies** of the deed to the parties.

On your side, carefully keep your copy of the deed of sale: it will serve you for your taxes, a future resale, or any question about the property.

After the signing, the notary publishes the sale in the Land Register, discharges the old mortgage and sends the copies. Carefully keep your deed of sale: it will serve you for your taxes, a future resale or any question about the property.

> EMILIE'S TIP
>
> *Store your deed of sale and your location certificate in a safe place. The day you resell, these documents will save you precious time.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Choose a notary (often recommended by the broker or the lender).
2. Gather my documents and ID.

Within 30 days

1. Have the titles and location certificate examined.
2. Budget for the fees and disbursements.

Next

1. Sign having understood the deed, with your questions asked.

For a calm signing

1. Choose and contact the notary as soon as the promise is accepted.
2. Prepare my documents, my funds and my proof of insurance in advance.

REFERENCES

Resources & glossary

- Notary: a public officer who secures and authenticates the sale.
- Title examination: verification of ownership and charges.
- Deed of sale: the official document transferring ownership.
- Land Register: the public register where the sale is published.
- Disbursements: publication fees and copies, on top of the fees.

- Notary: a public officer who secures and authenticates the sale.
- Title examination: verification of ownership and charges.
- Disbursements: publication fees and copies, on top of the fees.
- Land Register: the public register where the sale is published.

- Discharge: erasing the seller's old mortgage.

GOING FURTHER

Quiz — test your knowledge

1. In Quebec, a property sale closes:

A) Without a notary

B) Necessarily before a notary

C) At the bank only

D) By email

2. The notary acts:

A) For the seller alone

B) Impartially, for all parties

C) For the city

D) For the bank only

3. Title examination serves to:

A) Decorate the deed

B) Confirm ownership and detect hidden charges

C) Set the price

D) Pay the taxes

4. The sale is then published:

A) In the newspaper

B) In the Land Register

C) With the OACIQ

D) Nowhere

5. The notary's disbursements are:

A) Their fees

B) The publication fees, copies and searches

C) The Welcome Tax

D) Insurance

6. The Welcome Tax is paid:

A) At the notary's

B) Later, by municipal bill

C) Never

D) At the bank

7. The choice of notary often falls to:

A) The seller

B) The buyer

C) The city

D) The neighbour

8. For a stress-free signing, you must:

A) Wait until the day before

B) Contact the notary as soon as the promise is accepted

C) Prepare nothing

D) Choose at random

9. After the sale, the notary:

A) Forgets the file

B) Publishes the sale and discharges the old mortgage

C) Resells the house

D) Sets the taxes

10. Your copy of the deed of sale:

A) Is useless

B) Is kept carefully for the future

C) Is thrown out

D) Belongs to the bank

Answer key

1. B — The notary is unavoidable (intro).

2. B — An impartial public officer (ch. 1).

3. B — Verification of ownership (ch. 2).

4. B — Publication in the Land Register (ch. 2 and 5).

5. B — Disbursements distinct from the fees (ch. 3).

6. B — A later municipal bill (ch. 3).

7. B — The buyer usually chooses (ch. 1 and 4).

8. B — Anticipate (ch. 4).

9. B — The aftermath of the sale (ch. 5).

10. B — To keep for taxes and resale (ch. 5).

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Thank you for reading. May this guide help you decide with confidence, with all the information in hand.